

PLURINATIONAL STATE OF BOLIVIA

MINISTRY OF FOREIGN AFFAIRS

PERMANENT MISSION TO THE ORGANIZATION OF AMERICAN STATES

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The Permanent Mission of the Plurinational State of Bolivia to the Organization of American States presents its compliments to the Inter-American Juridical Committee and has the honor to forward herewith the replies to the questionnaire on the application of international law in the context of cyberspace, which has been duly filled out by the relevant entity of our state.

The Permanent Mission of the Plurinational State of Bolivia to the Organization of American States avails itself of this opportunity to convey to the Inter-American Juridical Committee renewed assurances of its highest consideration.

Washington, D.C., July 17, 2019

*To the Inter-American Juridical Committee
Organization of American States
Washington, D.C.*

OFFICE OF THE COMMANDER-IN-CHIEF OF THE STATE
INSPECTOR GENERAL OF THE ARMED FORCES

BOLIVIA

OAS INTER-AMERICAN JURIDICAL COMMITTEE QUESTIONNAIRE

(Technical-Legal Committee of Office of the Commander-in-Chief of the Armed Forces)

1. Has your Government previously issued an official paper, speech, or similar statement summarizing how it understands international law applies to cyber operations?

A. Bolivia is a signatory country of the Organization of the Organization of American States (OAS) and ratified its accession to this organization. In Fiscal 2009, the New Political Constitution of the Plurinational State of Bolivia^{1/} was promulgated. Chapter 2, on Fundamental Rights, Art.20.1 establishing as follows: “Every person has a right to universal and equal access to the basic drinking water, sewerage, electricity, domestic gas, postal and telecommunication services.” Telecommunications can therefore be understood as constituting a right for every individual.

The state also guarantees the development of science and scientific, technical, and technological research for the benefit of the general interest through Art. 103 of the Constitution of the State of Bolivia.

Following this, the General Law of Telecommunications, Information and Communication Technologies, Law No. 164^{2/}; and Supreme Decree 2514 of September 2015 established the technological and digital security spheres of reference and created the E-Government and Information and Communication Technology Agency (AGETIC),^{3/} a public body under the direction of the Ministry of the Presidency with a mission to lead the process of developing and implementing e-government and information and communication technologies in the public service and help build scientific and technological sovereignty for the Plurinational State of Bolivia.

AGETIC facilitates development of technology to modernize the state, transform the public service, and cut bureaucracy. This means that computer systems are being developed in the Plurinational State of Bolivia to streamline processes and services for citizens.

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1. Official Gazette of Bolivia: Political Constitution of the Plurinational State of Bolivia 2009.
 2. Law No. 164 - General Law of Telecommunication and Information and Communication Technologies.
 3. Supreme Decree No. 2514 establishes the creation of AGETIC BOLIVIA.

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3. Do existing fields of international law (including the prohibition on the use of force, the right of self-defense, international humanitarian law, and human rights) apply to cyberspace? Are there areas where the novelty of cyberspace excludes the application of a particular set of international legal rights or obligations?

A. Taking into account the concept of international law, which is the set of international rules of conventional and customary origin, specifically intended to be applied in armed conflicts, whether or not they are international, which, for human reasons, limits the right of the parties to a conflict to freely choose the methods or ways and means (weapons) to make war and which protects the people and property that are affected or may be affected by it, therefore, creating an analogy in the virtual and real context, it can be stated that the areas of current international law are applicable to CYBERSPACE.

4. Can a cyber operation by itself constitute a use of force? Can it constitute an armed attack that triggers a right of self-defense under Article 51 of the UN Charter? Can a cyber operation qualify as a use of force or armed attack without causing the violent effects that have been used to mark such thresholds in past kinetic conflicts?

A. In analyzing and comparing the two laws, it can be inferred that: a CYBER OPERATION constitutes use of force and generates the right to legitimate defense, based on Art. 51 of the United Nations Charter.

If in cyberspace it has been determined that there may be cases of "use of force," in addressing those cases, "self-defense" will also be accommodated.

This statement is more genuinely justified when the "use of force" arises in a cyber-attack considered as an "armed attack," on the understanding that a cyber virtual attack uses unconventional means that have the same impact an armed attack. Accordingly, Article 51 of the UN Charter recognizes the right to self-defense.

Under this section, it must be noted that in cyberspace as well, as in the case of nuclear weapons, "preemptive self-defense" (imminence) can be approved.

Although this issue has given rise to many debates, it seems that it could only be approved in the case, if it were not carried out and the state were to expect to suffer a cyber-attack, it would have missed any opportunity to respond to the effects of it (the cause-and-effect relationship has to be very much justifiable).

Regarding "self-defense," there would also be the principle of immediacy. The "immediacy" requirement (as opposed to the imminence requirement) distinguishes an act of self-defense from mere retaliation. If "imminence" raises discussions, more so does "immediacy," given how much time can pass before the effects are discovered and the culprits identified.

This is because the effects of cyber-attacks will not always be immediately known, hence it will not be easy to check "whether use of force" was resorted to, which determines whether there is a

“self-defense” response. In any case, self-defense will always be limited by the principles of necessity, proportionality, and distinction, according to the rules of IHL.

5. Outside of armed conflicts, when would a State be responsible for the cyber operations of a non-State actor? What levels of control or involvement must a State have with respect to the non-State actor’s operations to trigger the international legal responsibility of that State?

A. A State is not responsible for a cyber-attack by a non-state agent, because of a lack of technological infrastructure to carry out proper control, the responsibility of a non-state actor cannot be assumed; except where this non-state organization was associated with the defense policy objectives and/or strategies of a state in a situation of armed conflict.

The state must apply self-regulation mechanisms on its soil, taking into account the place, the purpose, and the results being pursued through this cyber operation, to be thus able to take control so as to hold non-state actors responsible under international law.

IHL will be applicable in any cyber operation or in everything that is usually called “cyber-attacks” in current language. IHL does not regulate cyber operations that are not subject to a the following situations of armed conflict:

- National security, propaganda, and espionage matters.
- Manipulation of strategic critical infrastructure
- Cyber operations with political objectives.
- Hacking into strategic private systems that put at risk a state’s economic and social operations.

6. Are the standards of State responsibility the same or different in the context of an armed conflict as that term is defined in Articles 2 and 3 common to the 1949 Geneva Conventions^{4/}?

A. It can be inferred from comparative legislation that both bodies of law – one national and the other international – are counterparts since they are intended to be applied... (...) *in the event of declared war or of any other armed conflict arising between two or several High Contracting Parties, even where one of them has recognized the state of war. The Convention will also apply in all cases of total or partial occupation of the territory of a High Contracting Party, even if the said occupation meets with no armed resistance. Although one of the Powers in conflict may not be a party to the present Convention, the Powers who are parties thereto shall remain bound by it in their*

4. Article 2. In addition to the provisions which shall be implemented in peacetime, the present Convention shall apply to all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties, even if the state of war is not recognized by one of them. The Convention shall also apply to all cases of partial or total occupation of the territory of a High Contracting Party, even if the said occupation meets with no armed resistance. They shall furthermore be bound by the Convention in relation to the said Power, if the latter accepts and applies the provisions thereof.

mutual relations. They shall furthermore be bound by the Convention in relation to the said Power, if the latter accepts and applies the provisions thereof^{5/}

7. Under international humanitarian law, can a cyber operation qualify as an “attack” for the rules governing the conduct of hostilities if it does not cause death, injury or direct physical harm to the targeted computer system or the infrastructure it supports? Could a cyber operation that produces only a loss of functionality, for example, qualify as an attack? If so, in which cases?

A. Based on the definition of cyber-attack as an offensive or defensive cyber operation that is intended to be able to cause loss of human life, injury to people, and damage to or destruction of property. It can be seen that this type of action falls within the definition referred to in Article 49 of Protocol I Additional to the Geneva Conventions.

A cyber operation could be considered as an attack when its objective is to disable a state's basic services (water, electricity, telecommunications, or the financial system, etc.), caused by another state's economic and political objectives.

The first provocative issue is to determine whether any cyber war operation can be considered as an armed conflict and therefore can be regulated under IHL. Two points of view therefore emerge: those affirming that any cyber-attack would find room; and those who think that there should be a direct link between an operation and military objectives.

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5. In the case of armed conflict not of an international character occurring in the territory of one of the High Contracting Parties, each Party to the conflict shall be bound to apply, as a minimum, the following provisions:
 - (1) Persons taking no active part in the hostilities, (...) at any time and in any place whatsoever with respect to the above-mentioned persons:
 - a) violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture;
 - b) taking of hostages;
 - c) outrages upon personal dignity, in particular humiliating and degrading treatment;
 - d) the passing of sentences and the carrying out of executions without previous judgment pronounced by a regularly constituted court, affording all the judicial guarantees which are recognized as indispensable by civilized peoples.
 - (2) The wounded and sick shall be collected and cared for. An impartial humanitarian body, such as the International Committee of the Red Cross, may offer its services to the Parties to the conflict. The Parties to the conflict should further endeavour to bring into force, by means of special agreements, all or part of the other provisions of the present Convention.
The application of the preceding provisions shall not affect the legal status of the Parties to the conflict.

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9. Is a cyber operation that only targets data governed by the international humanitarian law obligation to direct attacks only against military objectives and not against civilian objects?

A. A cyber operation becomes an “attack” when its objective is to destroy both military and civilian targets, on the understanding that those civilian targets constitute logistical support for military operations, etc. Cyber-attacks are socially- and politically-driven, they target the public at large and private or state organizations, and are orchestrated through the spread of hacker activities with malicious programs that can inflict personal or institutional harm on a state.

Any state as a whole can therefore be affected indiscriminately, whether as a military and/or civilian target.

10. Is sovereignty a discrete rule of international law that prohibits States from engaging in specific cyber operations? If so, does that prohibition cover cyber operations that fall below the use of force threshold and which do not otherwise violate the duty of non-intervention?

Cyberspace is “The set of global domain within the information environment, which derives its unique and distinctive character from the use of electronics and the electromagnetic spectrum to create, store, modify, exchange, and make use of information through interdependent and interconnected networks using information and communication technologies.” It is an area that is not subject to natural or geopolitical boundaries, as information is transmitted without borders. This has enabled a significant degree of sophistication but also the advent of new risks stemming from the new scheme. The fact that there are no boundaries has allowed states and non-state actors alike to be able to access cyberspace.

A state’s sovereignty can therefore be violated well via attacks from cyberspace, by non-state organizations, and by insufficient international regulation that is hard to enforce. As a result, states must monitor and control cyber infrastructures in their territory or those operating under their flag without necessarily being inside their geographical boundaries.

11. Does due diligence qualify as a rule of international law that states must follow in exercising sovereignty over the information and communication technologies in their territory or under the control of their nationals?

A. Taking into account the concept of “due diligence” represented in the relationship with those tools or measures through which to be able to identify, prevent, and mitigate in terms of good management of ICTs and be accountable for negative human rights impacts inherent to their activities.^{6/}

6. Devida Diligencia en la Investigación de Graves Violaciones a Derechos Humanos (*Centro por la Justicia y el Derecho Internacional, CEJIL*)

12. Are there other rules of international law that your government believes are important to highlight in assessing the regulation of cyber operations by States or actors for which a State is internationally responsible?

Mindful that this definition is globalized in nature, Cyber Operations of the Plurinational State of Bolivia has issued laws and supreme decrees mitigating and regulating these activities; but because of the dynamics and daily development of the fifth dimension called CYBERSPACE, the following documents must be mentioned as complements:

- International Law and Cyber Security.
- Tallin Manual on the International Law Applicable to Cyber Warfare. NATO., Etc.

Hetero-regulation, as opposed to self-regulation, is considered the best way to regulate cyberspace and ICT development, given the shortcomings outlined in the regulation of cyber operations. The concept of hetero-regulation is regulation outside of users - either by the national legislator, by international agreements, or by agreements between states and supranational organizations. Governments have an obligation to protect the fundamental rights of their citizens wherever they operate (on land, at sea, in the air, or in cyberspace).

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